

HOUSE No. 5267

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 19, 2026.

The committee on Environment and Natural Resources, to whom was referred the petition (accompanied by bill, House, No. 918) of Mike Connolly, John R. Gaskey and Leigh Davis for legislation to creation of a advisory panel (including members of the General Court) to investigate the scope and scale of sand mining and its current and potential impact on drinking water, reports recommending that the accompanying bill (House, No. 5267) ought to pass.

For the committee,

CHRISTINE P. BARBER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting drinking water and public health from sand mining pollution.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, there shall
2 be created a 9 member Advisory Commission to investigate the scope, scale and environmental
3 impact of sand mining in Massachusetts. The Commission shall consist of the following members
4 or their designees: one member from the Executive Office of the Secretary of Energy and
5 Environmental Affairs with an expertise in geographic information systems (GIS); two members,
6 one appointed by the President of the Senate and one appointed by the Speaker of the House of
7 Representatives, with knowledge of ecology, ecosystems, forestry or biodiversity; one
8 representative from the Community Land & Water Coalition; one representative from the
9 Conservation Law Foundation, one expert in hydrology nominated by the University of
10 Massachusetts and appointed by the Governor; and one Indigenous person appointed by the
11 Mashpee Wampanoag Tribe, the Herring Pond Wampanoag Tribe and the Aquinnah
12 Wampanoag Tribe. The Commission shall be chaired by the Secretary of the Executive Office of
13 Energy and Environmental Affairs or their designee.

b) The panel shall serve in an advisory capacity only and shall meet monthly or more frequently in public meetings to study sand mining in the Commonwealth including 1) the current and potential impact on drinking water; 2) the impact on air pollution including worker and public exposure to respirable crystalline silica from sand mines; 3) the impact on Environmental Justice communities and Indigenous history and culture; 4) climate change mitigation and resilience.

c) Said investigation shall conclude within two years of this legislation's passage into law and it shall include recommendations for statutory or regulatory changes to protect drinking water, air quality, worker and public health, and the ecology and environment. Said changes may include changes to licensing laws for mining, Part I, Title II, Chapter 21B, Section 5 of the General Laws.